CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMMARY MINUTES
REGULAR COMMISSION MEETING
JANUARY 13, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:05 p.m. on Wednesday, January 13, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, Interim City Attorney Joseph Geller and Assistant City Clerk Joanna Flores.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda to include the following resolutions under agenda item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A LAW ENFORCEMENT MUTUAL AGREEMENT FOR VOLUNTARY COOPERATION AND OPERATIONAL ASSISTANCE RESOURCES WITH MIAMI-DADE COUNTY, FLORIDA, IN

SUBSTANTIALLY THE FORM ATTACHED HERETO; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE BID FROM INTERNATIONAL SALVAGE, INC. IN RESPONSE TO INVITATION FOR BID ("IFB") NO. 09-1123 AND CONTRACT FOR SERVICES CONSISTENT WITH THE IFB IN AN AMOUNT NOT TO EXCEED ONE HUNDRED FIFTY THOUSAND DOLLARS ($150,000.00) IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND CONSISTENT WITH THE ATTACHED CONTRACT; AND TO BE APPROVED BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to amend the agenda to include item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING RESOLUTION 09-7458, DECLARING TWO (2) VACANT CITY-OWED PROPERTIES, IDENTIFIED BY FOLIO NUMBER 08-2121-007-1041 AND 08-2122-007-0270 AS SURPLUS PROPERTIES; AUTHORIZING THE TRANSFER OF SAID SURPLUS PROPERTIES FOR THE PURPOSE OF CONSTRUCTING "GREEN" SINGLE FAMILY RESIDENTIAL UNITS; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT FOR THE TRANSFER OF SAID PROPERTIES TO THE MIAMI-DADE AFFORDABLE

HOUSING FOUNDATION, INC. ("MDAHF"), CONTINGENT UPON CERTAIN CONDITIONS, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Mayor Kelley to amend the agenda to include item 12-3.

There being no discussion, the motion to amend failed by a 3-2 vote.

Commissioner Johnson	No
Commissioner Tydus	No
Commissioner Holmes	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	No

12-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY TO DONATE FIVE THOUSAND DOLLARS ($5,000.00) TO ASSIST IN JANUARY 12, 2010 EARTHQUAKE DISASTER IN HAITI; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include item 12-4.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO PROVIDE ASSISTANCE AND OTHER MATERIALS SUPPORT TO MIAMI-DADE COUNTY LEAGUE OF CITIES TO ASSIST IN JANUARY 12, 2010 EARTHQUAKE DISASTER IN HAITI; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include item 12-5.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Johnson requested to defer agenda items 15-4, 15-5, 15-7, 15-9 and 15-12 to the next regular commission meeting.

Commissioner Holmes stated that those items being deferred are sponsored by the City Manager and it would be up to the City Manager to defer those items.

Mayor Kelley asked the City Attorney for clarification on the deferrals.

Attorney Geller stated that unless there was a specific policy adopted, the agenda items can be deferred by motion and anyone can request that the item is deferred.

Commissioner Holmes expressed his frustration with deferring the resolutions sponsored by the City Manager without hearing comments from the City Manager.

Attorney Geller stated that the Commission can have a motion, the motion can be discussed, and that would allow the City Manager to have comment.

He further suggested that the motion for deferral should be done individually for each item.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to defer agenda item 15-4.

Commissioner Johnson stated that the majority of items should be deferred to the next regular commission meeting because the agenda is loaded. She asked the City Manager for the urgency on item 15-4.

Manager Finnie said that there was no urgency on agenda item 15-4 because it is essentially the city signing a document that would give the city the Tot Lot in the North Magnolia area.

Mayor Kelley stated that this item is urgent for him because he had been trying to get this parcel of land from the county and this resolution would give the conveyance of the land parcel to the city. This parcel would allow for the expansion of the James Street Tot Lot in the Magnolia area.

Vice Mayor withdrew her seconded and Commissioner Johnson withdrew her motion to defer.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to defer agenda item 15-5.

Commissioner Johnson asked, what is the urgency for this particular item?

Manager Finnie stated that the resolution is for a grant and there was no urgency.

Of concern to Commissioner Holmes was having to go through these deferrals because of the resolution passed by the Commission to bring someone else in as City Manager.

He further expressed his frustration in terms of the process for selecting a City Manager.

In terms of the deferrals, Mayor Kelley stated that Commissioner Johnson made comments about there being too many items on the agenda; however, there is no guarantee that there would be a lot of items on the next regular commission meeting agenda. The purpose of having the items under the consent is to lessen the agenda.

Commissioner Johnson expressed her concern with having a loaded agenda; however, if it was the pleasure of the Commission, they could move the deferrals and allow those items to remain under the consent agenda. Because the city does have a new City Manager, she is of the opinion that he should have input.

Mayor Kelley stated to his colleagues that he is going to move the agenda and when they get to the item the Commission can have discussion; but he will not entertaining anything else at that time.

Vice Mayor Taylor withdrew her seconded and Commissioner Johnson withdrew her motion to defer agenda item 15-5.

Commissioner Johnson stated that she was not going forth with the deferrals and those items would remain under the consent agenda.

Mayor Kelley encouraged the Commission to wait until an item comes up at which time they would have the opportunity to speak. Furthermore, he suggested that they focus on the agenda.

He continued by pulling item 15-1 from the Consent Agenda (this item would be discussed separately under agenda item 11).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes

Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – December 9, 2009
Special Commission Meeting – December 17, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the minutes of the Regular Commission Meeting of December 9, 2009 and Special Commission Meeting of December 17, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner came forward on behalf of Commissioner Barbara Jordan's Office and announced that applications for the Mom and Pop Small Business Grant Program for Miami-Dade County District 1 would be available from January 26, 2010 – February 17, 2010 at the district office or NANA. Additionally, a mandatory information workshop meeting would be held on February 17, 2010 at the North Dade Regional Library. Completed application will be accepted from February 18 – February 23, 2010.

He further announced that Commissioner Jordan was hosting a grant writing workshop on Wednesday, January 27, 2010 from 9:00 a.m. – 1:00 p.m. at the North Dade Regional Library.

Commissioner Johnson thanked Commissioner Jordan, the police department and the Opa-locka/Hialeah Flea Market for the distribution of blankets to the homeless.

Vice Mayor Taylor asked, why isn't the Fire Department on the agenda?

Clerk Flores advised that Commissioner Holmes had requested the Fire Department be included on agenda at the December 9, 2009 meeting and she would make sure it is included on the agenda.

10. PUBLIC PRESENTATION:

1. Alvin Burke

re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida appeared before the City Commission and apologized for his outburst at the January 11, 2010 special commission meeting. But he said he was upset and tired of the Commission wasting the taxpayers money.

Mayor Kelley reminded Mr. Burke of the decorum and directed him to address the Commission and not anyone individually.

Mr. Burke continued by voicing his concerns on spending.

Mayor Kelley again reminded Mr. Burke that he must address the Commission and not anyone individually.

2. **Steven Barrett**
   re: welfare of the city

Steve Barrett of 633 Sharar Avenue, Opa-locka, Florida, came forward and stated that several citizens attended the hearing on December 18, 2009 for the Class Action Settlement and Final Judgment in terms of the water. The judge allowed the citizens to speak, although what they spoke about didn't have anything to do with the Class Action Lawsuit. However, there were senior citizens concerned as to what the judge could do about their high water bills.

He suggested that the Commission find a way to reach the citizens of Opa-locka regarding the problems with their water bill.

He further asked, if the new ordinance for the water & sewer is in effect.

Manager Finnie stated that the decreases are in place now.

Mayor Kelley directed the City Manager to provide Mr. Barrett with a copy of the water & sewer ordinance.

Commissioner Holmes informed Mr. Barrett that he along with Faye Douglas and Ezekiel Orji of the Finance Department completed a commercial with information on the new changes to the water and sewer, and this should be aired on OPA-TV. Additionally, he would request that this information is also placed in the Miami Herald for those citizens who don't have cable.

10a. CITIZENS' FORUM:

1. Kimberly Smith of 2084 Washington Avenue, Opa-locka, Florida, came forward and expressed her concerns relating to harassment by the police officers; abandoned buildings; and finding grants to build new homes for a rent to own program.

Mayor Kelley stated that he spoke with Ms. Smith about the harassment and he directed her to follow the process. He assumed the issue was not addressed since Ms. Smith is now before the Commission.

He directed the City Manager to have the Chief of Police to address the concern in terms of the police harassment.

With regards to the abandoned houses, Mayor Kelley stated that there's been an ongoing challenge especially with those HUD properties owned by the county and he is hopeful that they now have their process in order in terms of what they're going to do to get those properties either rehabbed or torn down and rebuilt. In terms of the comment about ownership, that is something the city is looking into it.

Furthermore, he encouraged Ms. Smith to continue coming to the commission meetings and to get involved in one of the city's boards.

Commissioner Johnson directed the City Clerk to get information on SHIP program through Miami-Dade County in terms of the monies available for first time homeownership.

2. Ivonne Feijo, owner of property at 1111 Sharazad Boulevard, Opa-locka, Florida, came forward on an urgent matter with the water department in terms of the water department not turning off the water for non payment to those tenants living at her property and then her property is placed with a lien. She further expressed her concerns relating to the deposit paid for opening a water account which is not uniformed.

Ms. Feijo stated that her purpose for being at the meeting is that the water department wants to charge $800.00 to a tenant to turn on the water.

She continued by saying that the city didn't cut water off between the months of July and October, so no matter who paid or who didn't, the city is letting the water go. If a tenant is not paying and it's going beyond what the city holds as a deposit, then the city should be liable for that balance because they are not being responsible. The water department is a business and she cannot control someone else's usage.

Commissioner Holmes recalled that a moratorium was put in place by the Commission.

Mayor Kelley directed the City Manager to provide the Commission with a report on the meeting between staff and Ms. Feijo.

Manager Finnie said he would meet with staff and the property owner on this issue and bring back a report.

3. Henrietta Supriano of 6123 E. 5th Avenue, Miami, Florida, appeared before the City Commission as property owner in Opa-locka to express her concern relating to the

water bill and the moratorium that was in effect from July – October 2009 in which the city was not turning off the water.

Mayor Kelley directed the City Manager to meet with the property owner and staff and bring back a report to the Commission. In terms of the moratorium, he said he was not sure how the notification was done, but the City Manager would provide a report on that as well.

Mrs. Supriano commended the Opa-locka Police Department for doing such a great job.

11. ACTION ITEMS (items from consent agenda pull list):

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED FIVE THOUSAND DOLLARS ($5,000.00) FOR A CIVIL RIGHTS SUPPER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Mayor Kelley passed the gavel to Vice Mayor Taylor.

Of concern to Mayor Kelley was the fact that the resolution had come before the City Commission at the December 9, 2009 regular commission meeting and it failed; however, the resolution is back on the agenda at the following regular commission meeting.

Because Attorney Geller was not present at the December 9, 2009 regular commission meeting, he said he was unaware of the fact that it had already come before the Commission. Therefore, he prepared the resolution according to the request from Vice Mayor who provided a draft with changes from a previous draft.

Mayor Kelley questioned the fact that this resolution is on the agenda although it was presented at the previous regular commission meeting and it failed. He asked, did the changes meet the threshold of bringing the items back or can an item be brought back at the following meeting even if it had failed.

Not being aware of the city's past practice in terms of this issue, Attorney Geller said he inquired with the City Clerk's Office; however, he doesn't know whether there's a rule on that. Robert's Rules of Order indicates that legislation could be brought back for reconsideration but it has to be done by somebody on the prevailing side.

Mayor Kelley said he was not for a Civil Rights Supper and spending $5,000.00 but he is also concerned now because the city is setting a dangerous precedent if he's hearing that

something can fail and it can come back at the next meeting. He said he had never seen that happen since he'd been on the Commission.

Commissioner Johnson asked about the date for the Civil Rights Supper?

Vice Mayor Taylor stated that the Civil Rights Supper would be held on February 27, 2010.

Although her concerns before were with the private institutions, Commissioner Johnson said she sees it is now for any daycare centers not associated with Vice Mayor's organization.

Commissioner Holmes stated that there had been occasions where the Commission has brought legislation back at a later commission meeting.

Commissioner Tydus expressed her concern relating to the precedent being possibly set as well and there's needs to be some definitive opinion given by the City Attorney which was not done. In light of that, she requested that the City Attorney attend the commission meetings with the Code and Charter to make reference.

She continued by saying she is concerned about the fact that the attorney is leaving things hanging and up to the Commission to make a decision on legal matters without a definite direction or opinion. In order for her to make a decision on this item, the City Attorney must give his legal opinion.

Attorney Geller explained that at the time he prepared this resolution he didn't know it was previously voted upon and that it had failed. He stated that if there is a rule, he is not certain what the rule is and he is not aware that there is a particular rule; however, under Robert's Rule, it can only be brought back if it's substantially the same by somebody who voted with the prevailing side.

As a matter of precedent, he said that people who sat on this dais longer than he has would have to say what the precedent is. He inquired of the City Clerk's Office and was advised that there is a rule, but it pertains to an ordinance not being brought back. Because this matter was brought to his attention very late that day, he said he would be happy to research it further and give a definite answer.

Based on Attorney Geller's statement, Commissioner Tydus stated that Mr. Geller is the legal counsel for the City of Opa-locka and not the City Clerk.

Attorney Geller stated that he didn't mean to imply that he based his legal opinion on anything that the City Clerk said, he merely inquired since she had been with the city for a very long time. He explained that there are matters the Commissions do that are not written but considered precedent because that's the way things were done and had been done.

He continued by saying he had not had the opportunity to research the entire code or charter to tell the Commission if there's a rule prohibiting it or something in writing prohibiting but he has not been able to locate it in a very short timeframe.

Commissioner Tydus stated that she is in favor of the resolution, but she is concerned about as to whether it is legal for the Commission to consider this item.

Attorney Geller reiterated that at the time this matter was brought to his attention he was not able to research the Opa-locka Charter and Code because he was involved in preparing other materials for this meeting. Although he had not found anything that prohibits this, he could not provide a definite answer.

Commissioner Tydus advised that the city's code provides that the city should follow Robert's Rules of Order.

Under Robert's Rules of Order, Attorney Geller explained that an item to reconsider which is substantially the same item can only be brought back if it is brought by someone who voted on the prevailing side and this would be if the city is under Robert's Rules.

At this point, Vice Mayor Taylor asked, can the chair call for the vote on this item? She said that the Commission can't set a precedent now without the attorney doing a research.

Attorney Geller stated that he is not aware of anything in the code that either allows or prohibits it.

Commissioner Tydus asked, for the record, whether Attorney Geller had checked the code.

Attorney Geller replied, no. He said he didn't have the opportunity to research the Charter and Code of the city since this was first called to his attention at the very end of that day in preparing for the meeting with other items that he was also instructed to prepare.

Commissioner Johnson suggested that this item be deferred to the next meeting to allow the attorney an opportunity to review the code.

Vice Mayor Taylor stated that she already moved it a month and she's not sure she would have the time if she defers the resolution.

In the past, Commissioner Holmes recalled resolutions being brought back after several meetings so this is no big deal. He said Robert's Rules of Order doesn't prohibit the item from being brought back as long as it is done by someone on the prevailing side.

According to what the attorney has stated, Mayor Kelley stated that regardless whether it's this resolution or any other, the Commission would set a very dangerous precedent by

having the opportunity of any of them to come back and put an item back on the agenda that has failed.

Until the Commission can get a clear and definite policy on this issue, he said they would open themselves up for Pandora's Box if they don't have something that's clear and concise.

As sponsor of the resolution, Vice Mayor Taylor stated that items have been put back on the next commission meeting and until the attorney gives his legal opinion then they can't do it now. She expressed her concern about moving this item to the next meeting and not having enough time for planning the event for February 27, 2010.

She continued by asking the attorney if the Commission could vote on the resolution and he could bring back what they are asking for?

Attorney Geller said he could come back with an answer based on doing some research and see what's in the charter and code; however, if it's merely bad policy that does not prohibit the Commission from doing it but if it's something that prohibits it, then moving forward on a prohibited action would be a problem.

Vice Mayor Taylor asked, is this a prohibited action?

Attorney Geller couldn't answer the question as to whether this was a prohibited action. He explained that there are items the Commission has even if they are not in the Code of Ordinance and there's a resolution passed in terms of Rules and Procedures, then he would need to check for those as well.

Commissioner Johnson recalled that the former attorney Mr. Jones where often stated that if something failed the Commission would have to wait six months and she doesn't want to be in an awkward position.

Commissioner Tydus stated that the six months Commissioner Johnson made reference to has to do with ordinances.

Attorney Geller stated that was what he was advised by the City Clerk's Office but he would have to see if there's a rule.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	No
Vice Mayor Taylor	Yes

Vice Mayor Taylor returned the gavel to Mayor Kelley.

12. NEW ITEMS:

1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A LAW ENFORCEMENT MUTUAL AGREEMENT FOR VOLUNTARY COOPERATION AND OPERATIONAL ASSISTANCE RESOURCES WITH MIAMI-DADE COUNTY, FLORIDA, IN SUBSTANTIALLY THE FORM ATTACHED HERETO; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE BID FROM INTERNATIONAL SALVAGE, INC. IN RESPONSE TO INVITATION FOR BID ("IFB") NO. 09-1123 AND CONTRACT FOR SERVICES CONSISTENT WITH THE IFB IN AN AMOUNT NOT TO EXCEED ONE HUNDRED FIFTY THOUSAND DOLLARS ($150,000.00) IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND CONSISTENT WITH THE ATTACHED CONTRACT; AND TO BE APPROVED BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes

Commissioner Johnson	Yes
Mayor Kelley	Yes

4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY TO DONATE FIVE THOUSAND DOLLARS ($5,000.00) TO ASSIST IN JANUARY 12, 2010 EARTHQUAKE DISASTER IN HAITI; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

After being in contact with State Representative Yolly Roberson, Vice Mayor Taylor stated to the sponsor that the question was asked if there could be a designated area in the city for collection of items for Haiti. Additionally, Representative Roberson was in with the Governor's Office and they have an organization to direct revenue.

Commissioner Holmes stated that this resolution had nothing to do with the collection of items and his main purpose is to make sure the money goes towards helping the people in Haiti.

Commissioner Johnson suggested that the Commission fill in the blank so that the money goes to the American Red Cross.

Mayor Kelley advised that he was already working on the Haiti Relief in terms of canned goods and vegetables and he already had staff work on the flyers for the Mayor and City Commission sponsoring a food drive; however, the City Clerk's Office didn't have a chance to run the copies to bring to the meeting. This is not the first time the city has provided relief to Haiti. Under the auspices of the Mayor/Commission, he said he would continue with the food drive and will be in contact with the churches to be involved.

He continued to say that he also sponsored a resolution because he was unaware that the commissioner was preparing one and his is different in the sense that it was going to go through the League of Cities in order to make sure the money reaches the folks who need it. The only challenge with the American Red Cross is that when you donate to them, once their out they take the money with them and it goes to the next disaster. The main goal of this Commission is to assist the citizens in Haiti who have been impacted by the Earthquake.

He further stated that the Miami-Dade County League of Cities has asked all of the cities to come before their Commission for donations to make a presentation from the Miami-Dade League of Cities and to ensure because that was a part of the discussion during the conference call that it gets to the people in Haiti. He said his preference was the Miami-

Dade County League of Cities but he would go with the American Red Cross if that was the will of the Commission.

After hearing from Mayor Kelley, Commissioner Johnson stated that she would go along with the Miami-Dade County League of Cities if that would be acceptable to the sponsor.

Commissioner Holmes preferred that the money go to the American Red Cross.

Vice Mayor Taylor asked, can the Commission pass the resolution leaving the blank as is until the Mayor, City Manager or whoever can decide where the money can be placed.

Attorney Geller advised that the Commission doesn't have to fill in the "whereas" clause at all; however, what would change would be the action part in Section 2 where they are directing the City Manager. Instead of saying payable to the Commission, it just needs to give some instruction to the City Manager as to how he's to disperse the money, under what conditions and to whom. The City Commission can delegate that decision to the City Manager and the resolution could read "to be payable to an organization in consultation with the governor's office". The resolution can be passed without saying who the check is payable to provided that they include something in section 2.

Vice Mayor Taylor asked for clarification because the following resolution sponsored by Mayor Kelley also has a line for money in section 2.

Not being aware that Commissioner Holmes was sponsoring a similar resolution, Mayor Kelley said he sponsored the resolution because he wants to see the City of Opa-locka do whatever possible to assist the people in Haiti. He said he didn't have a problem with the $5,000.00 and if the Commission decides to go with the American Red Cross then he would support it. As a member of the Miami-Dade County League of Cities Board of Directors, one of the things that was discussed was before sending money anywhere that they were going to do due diligence to make sure it reaches the people. Additionally, the board had been in consultation with the Mayor of the City of North Miami because they have a sister city in Haiti and the Miami-Dade County League of Cities took a position to ask all of the cities to go before their Commission and ask for a donation making sure that it will get to the people in Haiti who needs it.

He further stated that if the $5,000.00 to the American Red Cross passes then he would withdraw agenda item 12-5 because in the end he just wants to help the people.

Commissioner Johnson asked for an account number to fill in the blank in the resolution.

Manager Finnie stated that the account number is 25-525390.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution payable to the American Red Cross to be taken from account no. 25-525390.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO PROVIDE ASSISTANCE AND OTHER MATERIALS SUPPORT TO MIAMI-DADE COUNTY LEAGUE OF CITIES TO ASSIST IN JANUARY 12, 2010 EARTHQUAKE DISASTER IN HAITI; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was deferred by the sponsor, Mayor Kelley.

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL OF CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821, PAYABLE FROM ACCOUNT NO. 34-535340, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND FOR FINAL APPROVAL BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on December 17, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above ordinance on second reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE PROPOSAL FROM ROADRUNNER PROFESSIONAL SERVICE LLC, IN RESPONSE TO RFP NO. 09-1016 – "LAWN MAINTENANCE, ALLEY CLEANING AND MEDIAN MAINTENANCE SERVICES"; FURTHER AUTHORIZING THE CITY MANAGER TO EXECUTE AN AGREEMENT WITH ROADRUNNER PROFESSIONAL SERVICE LLC, FOR LAWN MAINTENANCE, ALLEY CLEANING AND MEDAIN MAINTENANCE SERVICES CONSISTENT WITH THE ATTACHED CONTRACT FOR FINAL APPROVAL BY THE CITY COMMISSION; PROVIIDNG FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on December 17, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on second reading.

After being contacted by Channel 7 news in terms of her having a personal relationship with Roadrunner Professional Service LLC, Commissioner Johnson stated for the record that she does not have a personal relationship with Roadrunner Professional Service LLC.

She proceeded to request that Mr. Derrick Jones come forward and asked did he have a personal relationship with her.

Derrick Jones came forward and stated that he didn't have a personal relationship with Commissioner Johnson.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS UP TO SIX THOUSAND NINE HUNDRED SIXTY-SIX DOLLARS ($6,966.00) FOR THE PURCHASE AND INSTALLATION OF THREE FLAG POLES PAYABLE FROM ACCOUNT NO. 19-519461; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE CITY MANAGER'S DECISION TO ENTER INTO AND EXECUTE THE TROPICAL STORM FAY FEDERALLY FUNDED PUBLIC ASSISTANCE AGREEMENT WITH THE STATE OF FLORIDA DIVISION OF EMERGENCY MANAGEMENT FOR THE REIMBURSEMENT OF COSTS ASSOCIATED WITH TROPICAL STORM FAY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ACCEPT CONVEYANCE OF ONE (1) LAND PARCEL FROM MIAMI-DADE COUNTY BOARD OF COUNTY COMMISSIONERS TO THE CITY OF OPA-LOCKA FOR MAGNOLIA NORTHSIDE NEIGHBORHOOD, PROPERTY LOCATED AT 1801 ALI-BABA AVENUE, FOLIO NUMBER 08-2122-003-1690, AND PAYMENT FOR THE CONVEYANCE AMOUNT OF TEN DOLLARS ($10.00) AND CLERK OF COURT RECORDING FEES OF FORTY-TWO DOLLARS ($42.00), PAYABLE FROM ACCOUNT NO. 19-519493; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SUNGARD PUBLIC SECTOR INC. FOR AN OSSI COMPUTER AIDED DISPATCH SYSTEM IN THE AMOUNT OF NINETY FOUR THOUSAND SIX HUNDRED FORTY EIGHT DOLLARS ($94,648.00) AND FOR AN ANNUAL MAINTENANCE OF SAID SYSTEM IN THE AMOUNT OF SEVEN

THOUSAND TWO HUNDRED FIFTY FOUR DOLLARS ($7,254.00) TO BE PAID BY THE UNITED STATES DEPARTMENT OF JUSTICE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SUNGARD PUBLIC SECTOR INC. FOR AN OSSI ACCIDENT MODULE IN THE AMOUNT OF TWENTY THOUSAND EIGHT HUNDRED SEVENTY FIVE DOLLARS ($20,875.00) AND FOR ANNUAL MAINTENANCE IN THE AMOUNT OF THREE THOUSAND DOLLARS ($3,000.00) TO BE PAID BY THE UNITED STATES DEPARTMENT OF JUSTICE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A PROFESSIONAL SERVICES AGREEMENT WITH MARLON A. HILL FOR SERVICE AS A SPECIAL MASTER/MAGISTRATE FOR THE CITY OF OPA-LOCK, FOR THE RED LIGHT CAMERA PROGRAM PAYABLE FROM ACCOUNT NO. 19-519312 AND IN THE CONTRACT FORM ATTACHED HERETO AS EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN OPERATIONAL ASSISTANCE MUTUAL AID AGREEMENT WITH THE CITY OF MIAMI GARDENS, FLORIDA, IN SUBSTANTIALLY THE FORM ATTACHED HERETO, FOR LAW ENFORCEMENT SERVICES AND RESOURCES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON GSA CONTRACT 2008/09 – 3220-00-041 FOR THE UPGRADE OF UNDERGROUND FUEL STORAGE TANKS IN THE AMOUNT OF ONE HUNDRED AND THIRTY EIGHT THOUSAND SIX HUNDRED AND SEVENTY DOLLARS AND TWENTY FOUR CENTS ($138,670.24) BY SURGE SOLUTIONS GROUP, INC., PAYABLE FROM ACCOUNT NO. 32-541817; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE MIAMI-DADE COUNTY OFFICE OF GRANTS COORDINATION IN THE AMOUNT OF FORTY ONE THOUSAND SIX

HUNDRED AND FIFTY DOLLARS ($41,650) FOR THE CITY OF OPA-LOCKA CRIME PREVENTION PROGRAM FOR FISCAL YEAR 2010; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOMMENDING PUBLIC RECORDS REQUEST PROCEDURES. *Sponsored by R.T.*

12. APPROVAL OF A RESOLUTION TO RATIFY THE CITY MANAGER'S EXPENDITURE OF NINETY EIGHT THOUSAND DOLLARS ($98,000) FOR PROFESSIONAL SERVICES TO COMPLETE THE DESIGN OF SHERBONDY PARK AND FURTHER AUTHORIZING THE MANAGER TO EXECUTE AN AGREEMENT FOR PROFESSIONAL ENGINEERING AND CONSTRUCTION SERVICES WITH GENERAL DESIGN PROFESSIONAL INC (GDP) IN AN AMOUNT NOT TO EXCEED ONE HUNDRED TWENTY THOUSAND DOLLARS ($120,000.00) FOR PHASE ONE OF THE SHERBONDY PARK COMMUNITY CENTER/POOL, PAYABLE FROM ACCOUNT NO. 44-541803; PROVIDING FOR INCORPORATION OF RECITALS, PROVIDING FOR EFFECITVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie announced that the ceremony for the commencement of the demolition of the Old Water Plant is scheduled for January 14, 2010.

He congratulated the City of Opa-locka Parks & Recreation Department for their performance in the Junior Orange Bowl Parade in which the float won an award for the "Best Themed Float" in the parade.

Mayor Kelley directed the City Clerk to read a letter he received with regards to the Junior Orange Bowl Parade.

Clerk Flores read the letter into the record from Mayor Don Slesnick, City of Coral Gables addressed to Mayor Joseph L. Kelley congratulating the city for the best float award presented at the Junior Orange Bowl Parade for the "Best Use of Parade Theme".

Manager Finnie reported that the total project cost for the Community Garden is $42,000.00 and he would recommend via memorandum to the new City Manager that he continue with this project.

Lastly, he stated that he prepared a report on the city's accomplishments which would be provided to the City Manager in hopes that he would share it with the Commission. He provided a snapshot of the accomplishments in commercial.

Cheryl Cason, Chief of Police for the City of Opa-locka Opa-locka Police Department came forward and provided an overview of the press update from the United State Attorney's Office in partnership with the multi agenda task force illustrating the efforts in the Opa-locka Drug Task Force which resulted in charges against 17 defendants in connection with drug trafficking and the seizures of firearms.

She further thanked the City Manager, City Attorney and the City Commission for giving her the opportunity to lead the Opa-locka Police Department.

Manager Finnie added that the crime rate in Opa-locka is down by 22% and part of it is how the police department is proactive in community policing.

He further announced that on January 19, 2010 the city will be have a city-wide Crime Watch Meeting at 6:30p.m. at Town Center, 2nd Floor.

As it relates to the Martin Luther King Jr. Parade, Commissioner Johnson said the City Clerk is obtaining information and she would like to know if it is possible to get the float from the Junior Orange Bowl Parade and the kids to participate in the parade.

Manager Finnie stated that he would look into the matter and get back to Commissioner Johnson.

Commissioner Johnson stated to the City Manager, City Attorney and City Clerk that one of the resolutions for the special master was sponsored by the City Attorney; however, the agenda reflects sponsored by the City Manager.

She commended the City Manager for the demolition of the old water plant and the Opa-locka Police Department for an outstanding job in helping the needy.

She further stated that she met with the City Manager and the Director of Public Works regarding her concern about payments. The city must be consistent in the payment to vendors, and if there's any change in the process, the vendors must be notified.

Vice Mayor Taylor congratulated Chief Cason as being the new Chief of Police and being interviewed by South Florida Times.

She further thanked Mr. Finnie for his tenure as Interim City Manager for the City of Opa-locka. She continued to wish him well in the future.

Commissioner Holmes stated that he and the City Manager met with the property manager for 4050 NW 135th Street in terms of the high water bills and this individual has continued to email him on numerous occasions. He directed the City Manager to find out whether those condominiums could be listed as residential as oppose to commercial.

He announced that he would sponsor a Food Giveaway on January 20, 2010 at 1:30 p.m. at Historic City Hall parking lot compliments of Don Greene Poultry.

He continued to speak about the commercial recorded relating to information on the water bill and the new changes.

He further commended the Chief of Police and the Opa-locka Police Department for a job well done and encouraged them to keep up the good work.

Mayor Kelley stated to the City Manager that regardless of what he may do in the future, it's been an exciting ride.

He continued by commending the Opa-locka Police Department and the new police chief for the new press report just received.

He further stated that he was appreciative of the commitment to the City of Opa-locka.

In visiting the Opa-locka Police Department, Commissioner Johnson noticed a big check for $300,000.00 for community policing as well as the signature of President Barrack Obama.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka stated that the city is paying all its bills as they become due and duly approved. For information purposes, he advised that the city auditors started the audit process and they would be in the city to hopefully complete the audit by the end of February.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Geller reported that he'd been in touch with Mrs. Norris-Weeks and got a preliminary report as to any outstanding matters that they need to come up to speed on and she will provide additional information.

In reviewing the Quality Cities, Commissioner Johnson said she noticed there was a notation for a Drug Free work force and she noticed that in MuniCode there's an ordinance in 1994 or 1995. She requested that the ordinance is brought back because she wants to be the first one to take a drug test. It was also mentioned that judiciary committees were also drug tested.

Commissioner Holmes thanked Attorney Geller for filling in as Interim City Attorney. He directed the City Attorney to bring back a resolution to solicit resumes for an in-house city attorney.

Vice Mayor Taylor thanked Attorney Geller for his opinion on several items that the Commission had asked about in terms of procedures, rules and policies. She reiterated that Attorney Geller would research and give the Commission a ruling on those items.

Mayor Kelley encouraged the City Attorney to keep up the good work.

18. CITY CLERK'S REPORT:

Mayor Kelley stated for the record that Mrs. Irby was out ill.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported on her attendance at the Gun Buy Back Event with the Opa-locka Police Department and said she is working with Teen Court. Additionally, Helen from the Miami Herald introduced her to a young lady named Daisy and she would hope that Mayor Kelley would include her in the program for his State of the City Address.

She stated that she met two authors: Keoni McGhee and Joseph Washington who is the author of Breaking the Spirit of Average.

She further stated that she was asked to be the keynote speaker for Miami Job Corps on February 12, 2010. In terms of CAA, she will be attending a conference on headstart in Atlanta representing District 1.

NOTE: This portion of the minutes is transcribed in verbatim format.

Vice Mayor Taylor: My report is that I want to thank the Commission and whoever else that doesn't vote for your support of preschool education. Many times our community does not think that preschool education is important; other communities does and I really want to stress the importance of preschool and getting a good foundation and the passing of this resolution tonight through this supper is a way of investing in our very small children. And we want to do that so none of our children, very few would be on that report that you just read Chief with all of the charges. And if you start very young and instilling education and being good citizens and showing them how and by the time they

get to be teenagers they will have it already instilled in them. So I want to thank the Commission for supporting this resolution with that and like I said many times we're focusing on the teenagers and everybody else but very few of us focus on the very little ones, the wee ones. So thank you so much for that support. Thank you Mr. Mayor.

This concludes the verbatim portion of these minutes.

Commissioner Holmes reiterated that the Food Giveaway would be held on January 20, 2010 at 1:30 p.m. and invited all citizens of Opa-locka to come out.

He further stated that he would be donating $500.00 for the Haiti Relief.

Mayor Kelley reported on the abandoned properties in the Magnolia North area and the workforce initiative.

He announced the MLK walk on Saturday, January 16, 2010 at 9:00 a.m. at the Cultural Arts Center and the Mayor's State of the City Address on January 25, 2010 at 7:00 p.m. at Town Center Building, 2nd Floor.

He further advised that he continues to have prayer on the first Wednesday of every month with the Community and Faith Based Organizations.

NOTE: This portion of the minutes is transcribed in verbatim format.

Mayor Kelley: Finally in my remarks and I'm going to say it in all respect, when I heard the comment about supporting causes for the children, nobody probably on this Commission can ever say that the Mayor has not supported young people, older people, babies and in between. If it's something I feel that I don't want to support and I give my reasons, I do that; but I think to make the statement those who care about young people are somewhat self serving and I think we're all bigger than that. So I hope in the future that does not occur.

This concludes the verbatim portion of these minutes.

Commissioner Johnson thanked the Opa-locka/Hialeah Flea Market, the Starks Foundation, former Vice Mayor Terence Pinder and Eastside Crime Watch for providing the blankets and heaters for the senior citizens.

20. OFFICIAL BOARD APPOINTMENTS:

Mayor Kelley appointed Terry Rigby to the Charter Review Board.

21. ADJOURNMENT:

NOTE: This portion of the minutes is transcribed in verbatim format.

Mayor Kelley: I need a motion to adjourn.

Commissioner Johnson: Move it.

Commissioner Holmes: Seconded.

Vice Mayor Taylor: Excuse me, Mr. Mayor I really want to say, I wasn't talking about you personally. You called my name...wait just a minute.

Mayor Kelley: No, I didn't call your name.

Vice Mayor Taylor: Yes, he said that the person he talked about...

Mayor Kelley: Vice Mayor...

Vice Mayor Taylor: ...the children.

Commissioner Johnson: Seconded...seconded.

Vice Mayor Taylor: No, no, no, no, no! When it's time to do that then all of the sudden when the Vice Mayor has something to say, all of a sudden you have to hit the gavel. I wasn't talking about anyone...

Mayor Kelley: Vice Mayor...

Vice Mayor Taylor: I thanked the Commission for supporting the children. This is not a self serving announcement. Everybody here does something. All of the giveaways, all of the this, the marches, the walk, I never talk about anybody self serving. I thanked the Commission for supporting me in the children. Now whether you voted for it or not, I thanked everybody, I did not single anyone out. So I don't appreciate you having that last throwback remark. I didn't...I was not talking about you. Now you brought it up yourself. I thanked everybody for supporting the little children. That's it.

Mayor Kelley: Let the record reflect that I did let the Vice Mayor finish her statement.

Vice Mayor Taylor: I appreciate that.

Mayor Kelley: And I still stand by my remarks. The meeting is adjourned, the time is 9:35 p.m.

NOTE: This concludes the verbatim portion of these minutes.

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 9:35 p.m.

MAYOR

ATTEST:

CITY CLERK